

Class 12: Responses to Political Violence

State responses: repression

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Agenda for the day

- Opening notes
- State repressive responses
- Poll: Repressive measures
- Banning
- Any questions, concerns, feedback for this class?

Opening notes



- short synopsis for final essay due Friday (17 January) (send to me via email)

Course feedback

Please take a few minutes to fill in the course feedback survey (check your LMU email).

If have an opinion on these points in the comments:

- Would you have preferred getting a specific assigned organisation to independently study in depth? Yes/No
- Would you have liked more structured discussions (e.g., set debates on class topics)? Yes/No
- Would you rather that class readings are drawn from textbook(s) than journal articles? Yes/No
- changes or additions to the course website?

State repressive responses

- What options/possibilities are there
- dimensions of repression/social control
- al-Anani (2019) - Rethinking the repression-dissent nexus
- a repressive measure recently in the news



What repressive measures can be applied to address (potential) political violence? In democratic systems? In authoritarian systems?

3 dimensions of repression/social control (Earl 2003)

Identity of repressive agent	State agents tightly connected with national political elites (e.g., military units)	State agents loosely connected with national political elites (e.g., local police departments)	Private agents (e.g., counter-demonstrators)
Character of repressive action	Coercion (e.g., use of tear gas and rubber bullets)	Channelling (e.g., restrictions on registered organisations)	
Whether repressive action is observable	Observable (i.e., overt; e.g., Tiananmen Square)	Unobserved (i.e., covert or latent; e.g., COINTELPRO)	

What sort of repression/social control in cases do you know of? Was it effective? Why/How?

al-Anani (2019) - responses to repression

- collective responses to repression
 - opposition movements' tactics in responding to repression (i.e. mobilisation, backlash, de-escalation, etc.)
- individual responses to repression
 - specific individuals' reactions to repression, shaped by emotions, memory, personal experiences, and grievances (e.g., disengagement, radicalisation)

al-Anani (2019) - research in brief

- 20 interviews between 2016 and 2018 with current and former members of Muslim Brotherhood
 - any notes about Egyptian context or specifics of Muslim Brotherhood?
- repression has differential (individual-specific) effect

Emotions such as **anger**, **hate**, and **despair** have played a key role in shaping their response to repression. Members had different responses that ranged from adopting revolutionary and confrontational tactics to political apathy. [p. 8]

al-Anani (2019) - research in brief

- 20 interviews between 2016 and 2018 with current and former members of Muslim Brotherhood
 - any notes about Egyptian context or specifics of Muslim Brotherhood?
- conjunctural cause of disengagement

The high cost of protesting and political participation coupled with frustration from the Brotherhood's incapable leadership disenchanted several members who not only broke ties with the Brotherhood but also with politics as a whole.

Discussion point: pressure against Höcke

- GG Article 18 enables the BVerfG to **suspend an individual's fundamental rights** (i.e., free expression, freedom of the press, and the right to vote and hold public office)
- the federal government has filed against 4 people in history of BRD
 - 1. Otto Ernst Remer in 1960; 2. Gerhard Frey in 1974; 3. Heinz Reisz in 1992; 4. Thomas Dienel in 1992
 - all rejected by BVerfG
- calls to file against Björn Höcke (AfD Thüringen) (e.g., DPA 2024)
 - 2019: Verwaltungsgericht Meiningen rules that *he may be described as 'fascist'* ([link](#)); 2023: Hamburger Staatsanwaltschaft, it is not a legal offence (*Beleidigung*) to call Höcke a 'Nazi' ([link](#))

Poll: Repressive measures



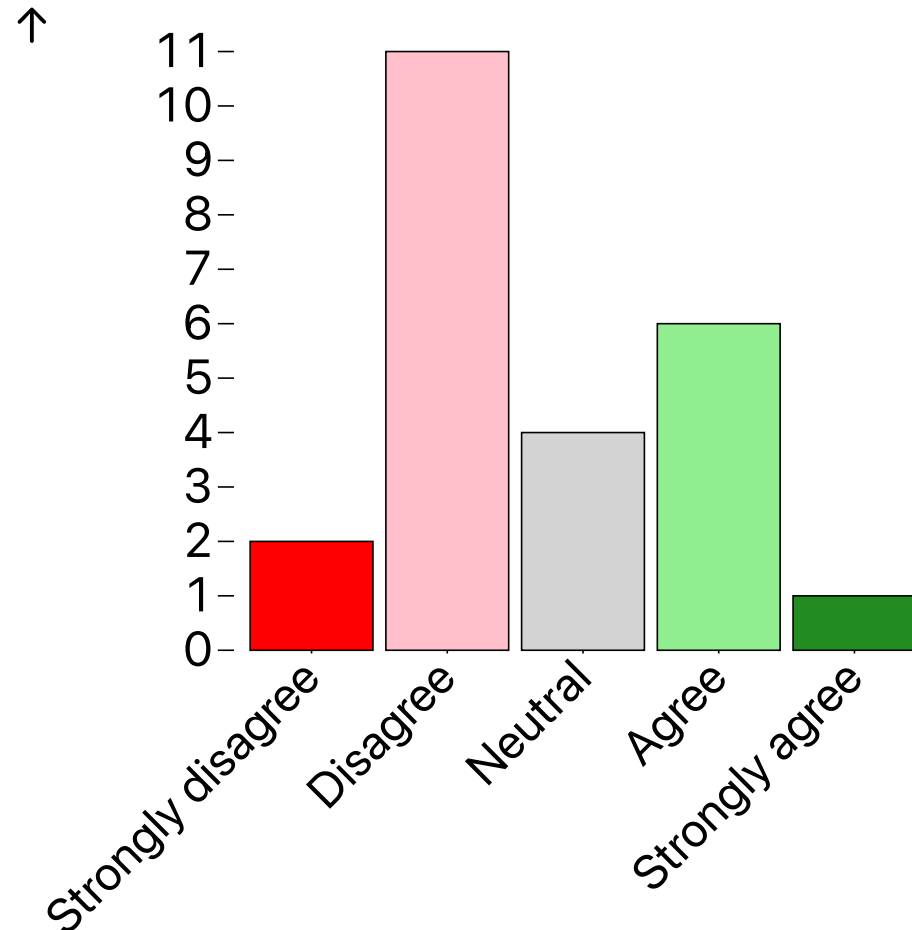
Take the survey at

<https://forms.gle/C3mgptnc3oX4hYd57>

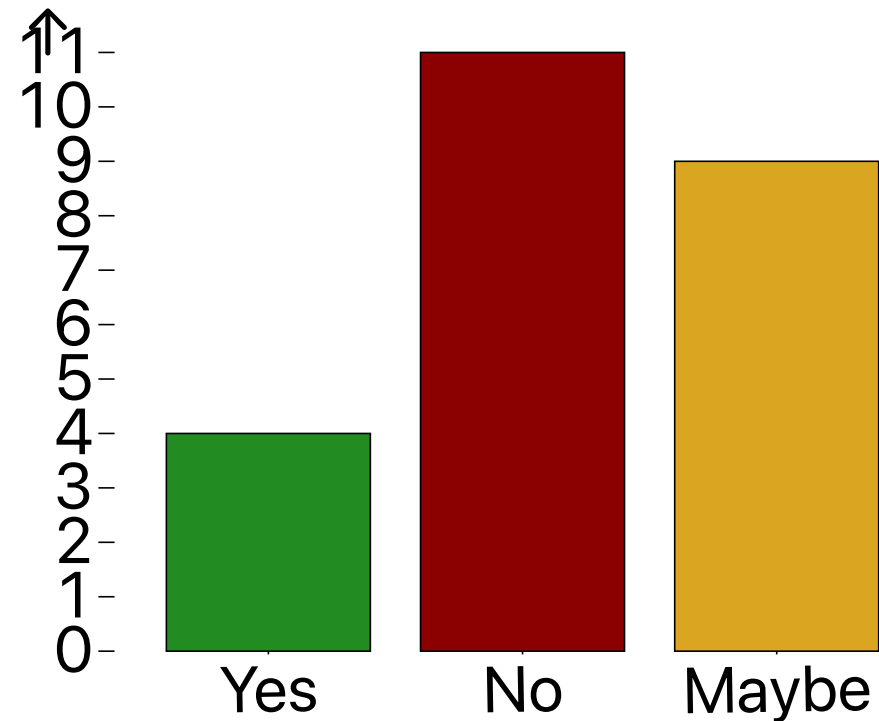
- Repression reduces non-state political violence?
 - Repression more likely to *deter* than to *radicalise* bystanders?
-
- Strategy most likely to end political violence?
 - Why do you think states ban groups?

Poll results (Respondents: 24)

Repression reduces non-state political violence?

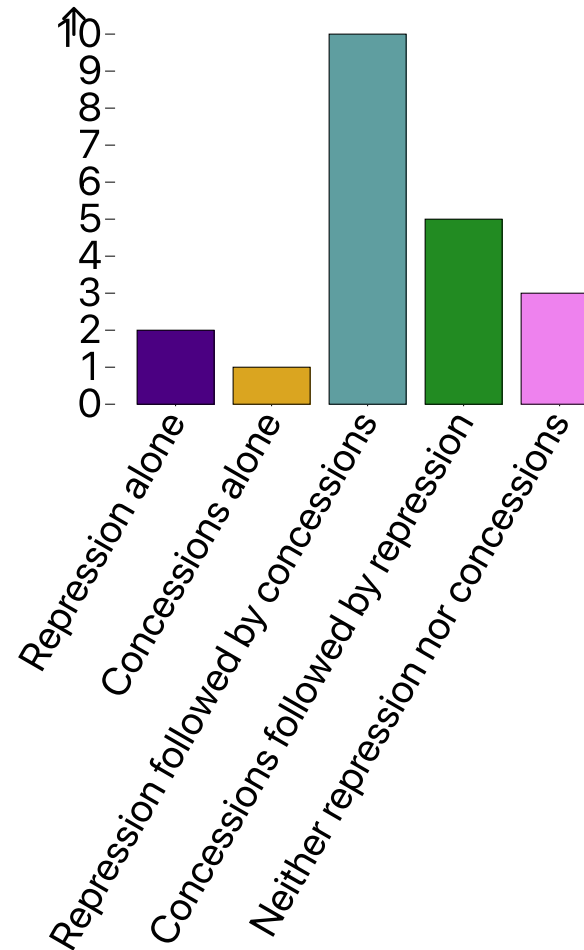


Repression more likely to *deter* than to *radicalise* bystanders?



Poll results - ending violence

Strategy most likely to end political violence?



Poll results - banning groups

Why do you think states ban groups?

Array(16) ["stop illegal activity", "disrupt extremist networks", "deter extremist activists", "It is the only way a state can maintain its control", "Threat to maintained order", "Because its easier to ban them then to deal with them", "To protect the constitution & democracy", "Danger to the population", "So that they can be more easily prosecuted ", "to show their authority and put limits to radicalism that threatens our democracy ", "hopefully to ensure the order / demokratische Grun...metimes unfortunately also to empower their means", "In case of a democratic state: to protect itself & its citizens from extremist groups ", "Depending on the constitution, I think states ban ...se they endanger democracy or are too polarizing ", "Gorups are mostly threat to security

Banning

- banning - the most severe legal instrument states have
 - (legal) causes
 - consequences
- party bans (Bourne and Veugelers 2022)
- organisation banning patterns in Germany (Zeller 2025)



- (legal) justifications (in Germany, but similar in several other countries) (Arts. 21(2), 9(2) GG; *Vereinsgesetz*)
 - seeks to undermine or abolish the free democratic basic order
 - opposition to core constitutional principles (human dignity [(Art. 1 GG)], democracy, rule of law)
 - directed against ‘international understanding’
 - in continual violation of criminal law
- consequences
 - further activity is criminalised
 - re-forming the organisation is criminalised
 - assets are confiscated

Comparative case selection

x = causal variable; y = phenomenon to be explained

MDSD (most different systems design)

Case 1	Case 2	_
a	d	overall
b	e	differences
c	f	
x	x	crucial
y	y	similarity

MSSD (most similar systems design)

Case 1	Case 2	_
a	a	overall
b	b	similarities
c	c	
x	not x	crucial
y	not y	difference

Further on case selection strategies, see Gerring (2007, e.g., pp. 89-90)

Banning successor parties - Bourne and Veugelers (2010)

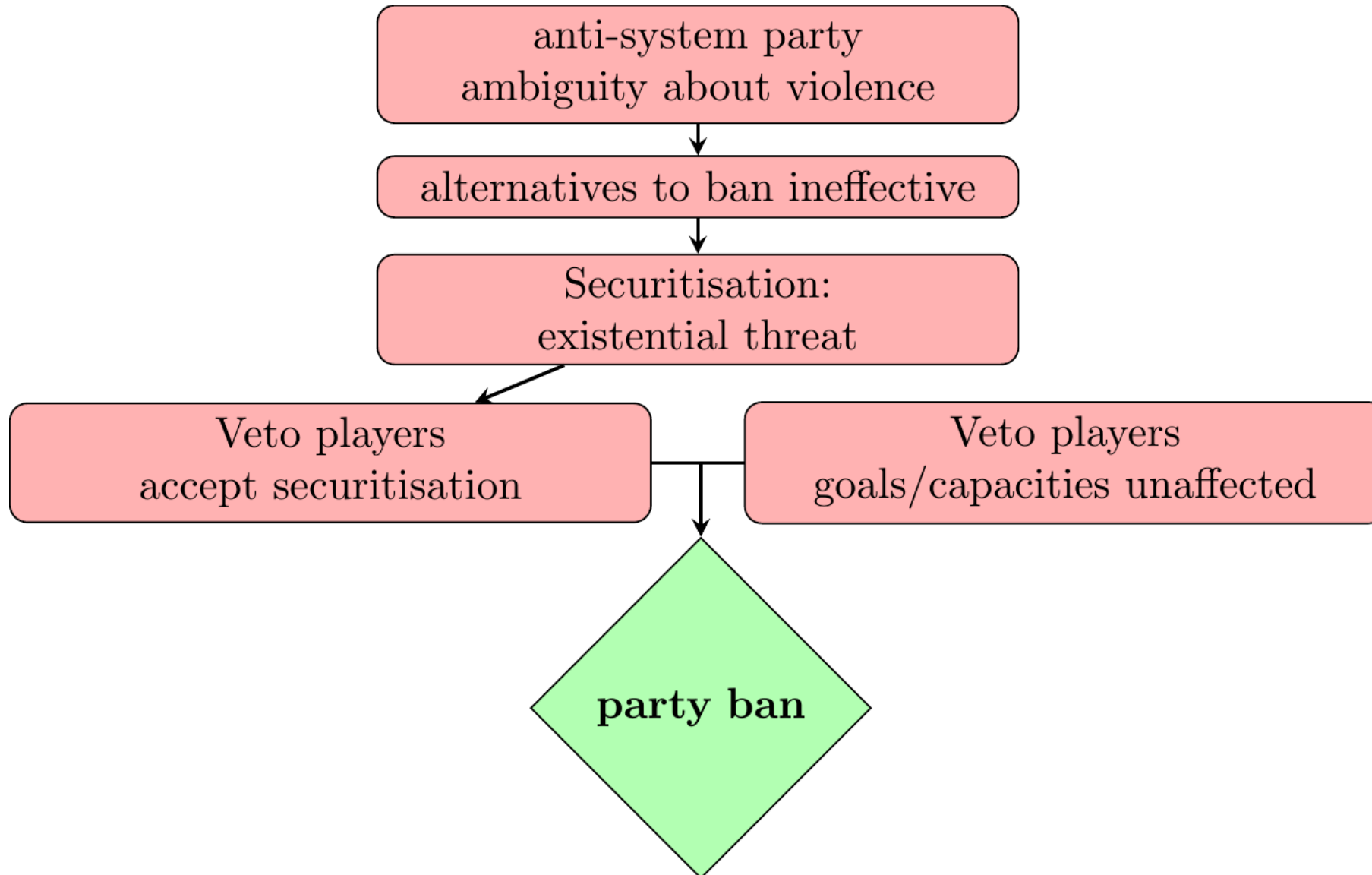


- **case selection**: DE and IT: **similar** right-authoritarian past [and banning law] but **dissimilar** in their tolerance of post-1945 right-authoritarian parties
 - MSSD (sort of)
- population: **militant democracies** - **what does this mean?**
- observations: (1) **attitude towards violence**, (2) **alternatives to ban**, (3) **securitisation**, (4) **veto player agreement**, (5) veto player incentives
- method: **csQCA** (Well, more a 'focused paired comparison')



*Movimento sociale
italiano*

Banning successor parties - Bourne and Veugelers (2014)



Banning successor parties - Bourne and Veugelers (



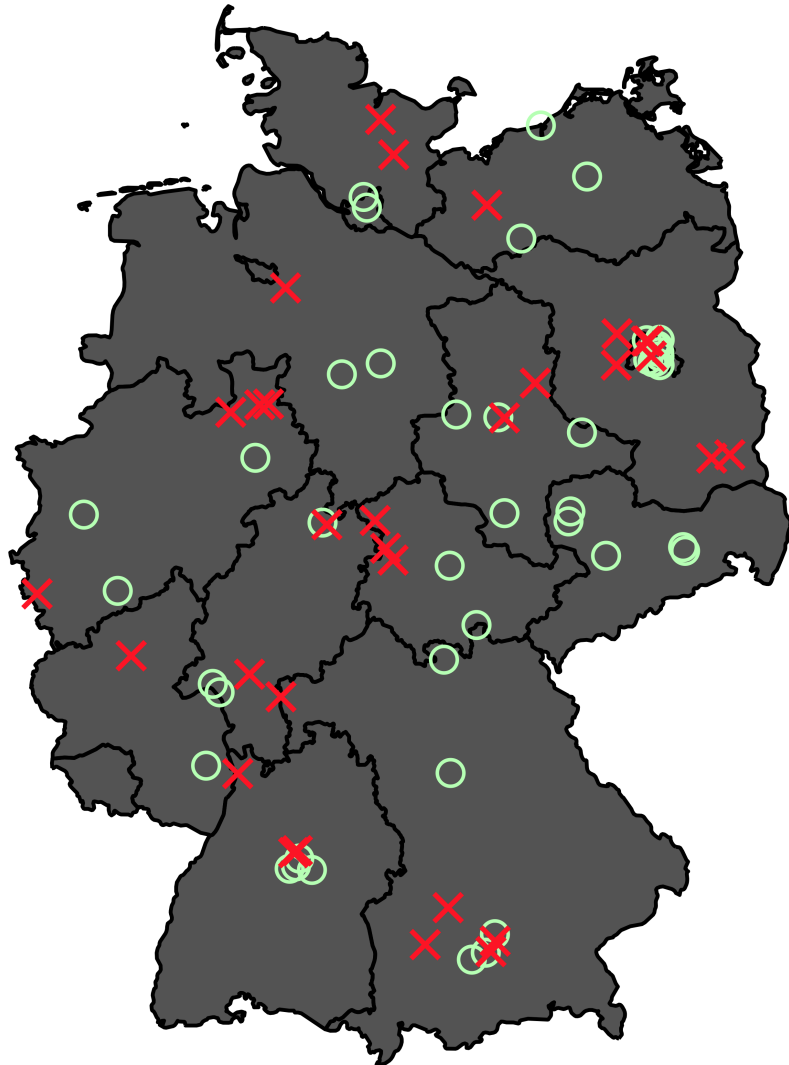
- (slightly permeable) **cordon sanitaire** around MSI (ban alternative)

findings:

- **attitude towards violence** *not* a clearly important factor
- two key conditions: **veto player agreement** and (especially) **securitization**

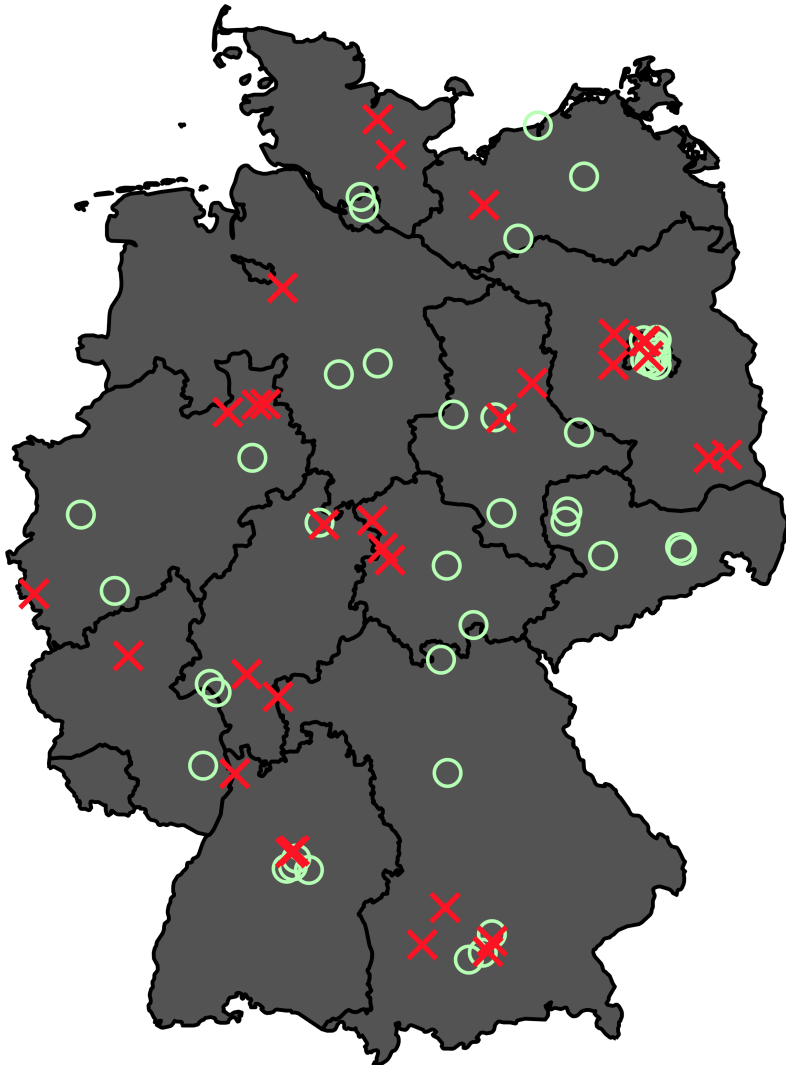
Any modern examples worth comparing to...?

Banned & monitored (nationally) FR orgs in Germany 2025)



- Organisations monitored by Bundesverfassungsschutz (VfS)
 - ○: monitored by VfS, but not banned
 - x: banned by BRD interior ministry

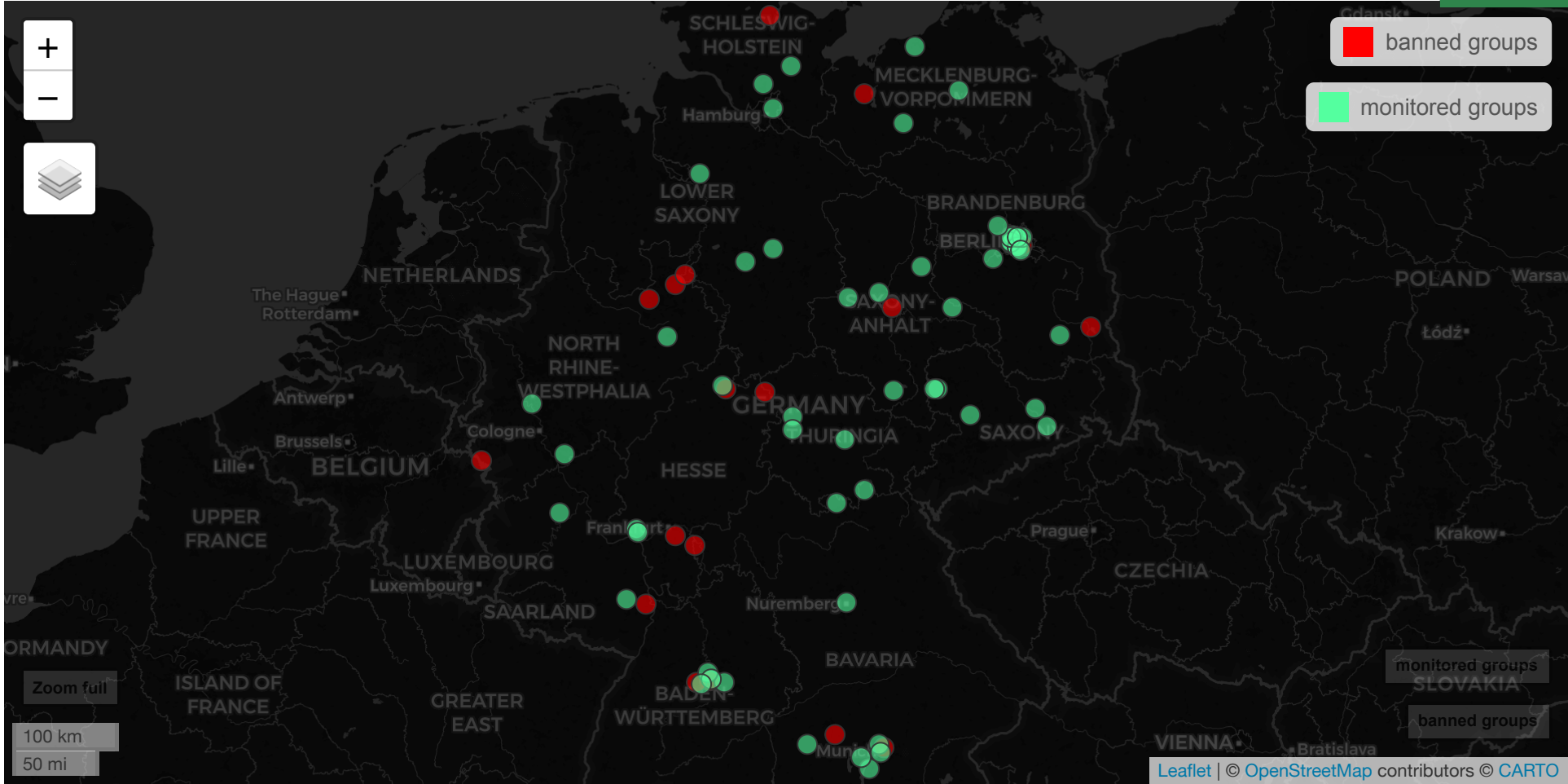
Banned & monitored (nationally) FR orgs in Germany 2025)



- Organisations monitored by Bundesverfassungsschutz (VfS)
 - ○: monitored by VfS, but not banned
 - x: banned by BRD interior ministry
- many groups/orgs. exist that are in violation of the law; they are monitored; but they are not banned. Why?

Banned & monitored (nationally) FR orgs in Germany (2025)

Monitored (nationally) FR orgs in Germany (Zeller 20



Banning FR orgs in Germany - necessity (Zeller 2025)

- **high far-right visibility** is necessary for banning decisions

German governments banned far-right organisations only in years when far-right activity, in the form of violence or agitation, was highly visible. Conspicuous incidents of violence in particular were often a prod to proscriptive action. Organisational unlawfulness alone is not enough to explain banning decisions. Without public or political awareness, authorities appear unlikely to act, even if a group is technically illegal.

Banning FR orgs in Germany - sufficient patterns (Zerl 2025)

1. **Neo-Nazi movement groups** – organisations promote **National Socialist ideology**—legally sufficient for banning in Germany and several other countries—as well as racial hatred and violence.
2. **Longstanding hubs** – long existing organisations, serving as centres of far-right activism and networking (**network disruption strategy in banning decisions?**)
3. **Militant organisations** – organisations embody particularly aggressive, confrontational far-right activism

Case 1: Nationale Offensive (NO) (Zeller 2025)

- typical of **neo-Nazi sham parties** pattern
- founded 1990 (by split from FAP) → linked to previously banned group
- not serious electoral contestation:
 - 0.2 per cent at local elections in Singen-Konstanz
 - 1992 BW Landtag elections: 183 votes out of five million cast
- **BAN:** by Rudolf Seiters (CDU): the NO 'created and fuelled a xenophobic mood.'
- NO *appealed...* → Federal Administrative Court *quashed* appeal

mechanism: *social and political pressure* on minister ← *indignation about high levels of far-right violence* (HVIO) situation

Case 2: Collegium Humanum (CH) (Zeller 2025)

- typical of **longstanding hubs** pattern
- founded 1963 by Haverbeck (d. 1999) and Haverbeck-Wetzel
 - **had charitable status** (*Gemeinnützigkeit*)
 - meeting point (Vlotho, NRW) for far-right activists from all over
 - *are there any banned orgs. to which the CH was not linked?!*
 - publication: *Stimme des Gewissens*
- **BAN:** by Wolfgang Schäuble (CDU): the CH was directed against Germany's constitutional order and repeatedly violated laws against Holocaust denial

Case 2: Collegium Humanum (CH) (Zeller 2025)

informative epilogue to these cases (Zeller 2025)

Response to parliamentary inquiry (Deutscher Bundestag 1994).

Asked about effects of banning, government asserted

the bans had achieved ‘widespread uncertainty and a lack of prospects in the right-wing extremist scene, far-reaching suppression of group activity by breaking up organisational structures and confiscating organisations’ assets, and the seizure of weapons’

Moreover: government claimed a sort of **chilling effect**, that other groups ‘*have at least restricted their agitation activities in order to prevent bans*’.

informative epilogue to these cases (Zeller 2025)

Conversely, gov. acknowledged that ...

- BfV intelligence-gathering perhaps disrupted by banning action,
- activists might use banning as an opportunity to propagandise,
- bans could radicalise members (i.e., conspiratorial, aggressive),
- members might acquire more solidarity by enduring banning

Response concludes, negative effects are uncertain, visible only after time; positive effects are achieved directly through the enforcement of bans. **instrumental logic**

- inconsistency in German governments' banning practices:
 - org. characteristics alone are not enough to explain bans
 - situational factors are causally significant and cannot be ignored
- the use of banning is sometimes a tool of politics rather than a targeted response to systemic threats
- *high far-right visibility* (HVIO+HPRO) necessary situation for ban
 - but that **visibility is specific** rather than generalised
 - builds social/political pressure to ban

bans do not just follow the law—they follow pressure. Public visibility, political will, and social mobilisation all shape outcomes. This means that organisational bans and perhaps other militant democracy decisions are not solely in the hands of governments. Societal actors inform and influence how states and governments respond to extremism.

A contentious concluding question

- what matters to BVerfG (Germany's federal constitutional court)? ...
(https://www.bundesverfassungsgericht.de/EN/Verfahren/Wichtige-Verfahrensarten/Parteiverbotsverfahren/parteiverbotsverfahren_node.html)
(cf. Backes 2019)
 - “*actively belligerent, aggressive stance vis-à-vis the free democratic order and must seek to abolish it*”
 - large/successful enough to potentially achieve its anti-constitutional goals
- the Bundestag, the Bundesrat, and the federal government can file for a constitutional complaint

do you think the AfD meets these criteria?

leaked! Verfassungsschutzgutachten zur AfD (Bundesamt für Verfassungsschutz 2025)

Any questions, concerns, feedback for this class?

Anonymous feedback here:

<https://forms.gle/NfF1pCfYMbkAT3WP6>

Alternatively, please send me an email: m.zeller@lmu.de

References

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